

Tentative Rulings for September 21, 2026 Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2104191	SANCHEZ vs FELLOWSHIP WAREHOUSING AND LOGISTICS, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR FELLOWSHIP WAREHOUSING AND LOGISTICS, LLC

Tentative Ruling: No tentative ruling, appearances requested.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402798	COE vs FIVE J'S FAMILY ENTERPRISES L.P.	MOTION FOR PRELIMINARY APPROVAL OF CLASS AND REPRESENTATIVE ACTION SETTLEMENT AND PROVISIONAL CLASS CERTIFICATION FOR SETTLEMENT PURPOSES ONLY;

Tentative Ruling: Appearances requested to discuss:

1. No declarations from defense counsel or defendant (perhaps not need the declaration from the defendant because it appears that the notice will be translated into Spanish).
2. Was a bidding process used to select Phoenix Class Action administrative Solutions as the administrator and was its bid the low bid?
3. Release references claims that "could have been alleged"—are there any such claims?
4. Revise proposed order to include that counsel or the administrator will notify any objector of a rescheduling of the hearing on final approval, require Phoenix to file a declaration in support of the motion for final approval authenticating any objection or requests to opt out received and to preclude requiring any objector from having to appear at the hearing or to file a notice of intention to appear. Either remove from the forms the last four of SSNs or require the administrator to redact them from any forms filed with the motion for final approval.
5. Correct notice, which says the settlement agreement is attached to the declaration of Megan R. Lazar filed on a blank date—it's the declaration of Alexa R. Guzman filed August 27, 2026.
6. Select date for hearing on final approval (order, ¶¶s 24-25).

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601621	CASTILLO vs PERZ	MOTION TO CONSOLIDATE

Tentative Ruling: Appearances requested to discuss how consolidation would result in any prejudice, "improper comingling of class and individual evidence", would impair the procedural protections owed to absent putative class members, or would complicate

discovery. It appears that the two cases are based on the same alleged Labor Code violations and that keeping the cases separate would make duplicate discovery and, if the matter goes to trial, duplicate presentation of evidence, inevitable. Thus, it appears that consolidation, with bifurcation for trial, is preferable to keeping the cases separate.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2603378	BIXLER vs LENNAR HOMES OF CALIFORNIA, LLC.	DEMURRER ON COMPLAINT

Tentative Ruling: Continued to November 5 by stipulation.